

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 HOUSE BILL 3443

By: Wilk and **Miller** of the
House

5 and

6 Frix of the Senate

7
8
9
10 AS INTRODUCED

11 An Act relating to transportation; authorizing the
12 modification of certain permit fees; requiring use of
13 certain formula for calculation; amending 47 O.S.
14 2021, Section 14-103, as amended by Section 3,
15 Chapter 116, O.S.L. 2022 (47 O.S. Supp. 2024, Section
16 14-103), which relates to width, height and length of
17 vehicle and load; modifying certain fee; amending 47
18 O.S. 2021, Section 14-103G, as amended by Section 7,
19 Chapter 116, O.S.L. 2022 (47 O.S. Supp. 2024, Section
20 14-103G), which relates to oversize or overweight
21 permits; modifying certain fees; 47 O.S. 2021,
22 Section 14-109, as amended by Section 8, Chapter 116,
23 O.S.L. 2022 (47 O.S. Supp. 2024, Section 14-109),
24 which relates to load limits; modifying certain fees;
amending 47 O.S. 2021, Section 14-116, as amended by
Section 9, Chapter 116, O.S.L. 2022 (47 O.S. Supp.
2024, Section 14-116), which relates to permit fees;
modifying certain fees; amending 47 O.S. 2021,
Section 14-118, as amended by Section 11, Chapter
116, O.S.L. 2022 (47 O.S. Supp. 2024, Section 14-
118), which relates to motor carriers; modifying
certain fees; amending 47 O.S. 2021, Section 14-120,
as amended by Section 13, Chapter 116, O.S.L. 2022
(47 O.S. Supp. 2024, Section 14-120), which relates
to movement of certain manufactured items; modifying
certain fees; amending 47 O.S. 2021, Section 14-121,
as amended by Section 16, Chapter 116, O.S.L. 2022

(47 O.S. Supp. 2024, Section 14-121), which relates to special combination vehicles; modifying certain fees; providing for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 14-127 of Title 47, unless there is created a duplication in numbering, reads as follows:

The Oklahoma Department of Transportation is authorized to increase any oversize or overweight related permit fees found in its administrative rules including, but not limited to:

1. Special Overheight Trailer Permit for Limited Travel Thirty-day (30-day) Permit;
2. Longer Combination Annual Permit; and
3. Special Overheight Trailer Permit for Limited Travel Annual Permit.

The Department shall use a formula for calculating the changes to the fees using a cost of living adjustment through the year 2024.

SECTION 2. AMENDATORY 47 O.S. 2021, Section 14-103, as amended by Section 3, Chapter 116, O.S.L. 2022 (47 O.S. Supp. 2024, Section 14-103), is amended to read as follows:

Section 14-103. A. Except as otherwise provided for by this chapter, no vehicle, with or without load, shall have a total outside width in excess of one hundred two (102) inches excluding:

1 1. Tire bulge;

2 2. Approved safety devices;

3 3. A retracted awning with a width of eight (8) inches or less
4 or other appurtenance of four (4) inches or less which is attached
5 to the side of a recreational vehicle, as defined in Section 1102 of
6 this title; and

7 4. Pins used as a safety precaution or as a load-assisting
8 device if the pins do not extend the overall width of the vehicle
9 beyond nine (9) feet. The State of Oklahoma hereby declares it has
10 determined, in accordance with 23 C.F.R., Section 658.15, that such
11 pins are necessary for the safe and efficient operation of motor
12 vehicles.

13 The provisions of this subsection shall not apply to any person
14 engaged in the hauling of round baled hay with a total outside width
15 of eleven (11) feet or less when the hay is owned by such person and
16 is being hauled for any purpose other than resale. The provisions
17 of this subsection shall also not apply to any county official or
18 employee engaged in the hauling or pulling of a trailer or equipment
19 owned by the county on the county roads of such county.

20 B. Except as otherwise provided for by this chapter:

21 1. No vehicle, with or without load, shall exceed a height of
22 thirteen and one-half (13 1/2) feet on any county road, or fourteen
23 (14) feet on any turnpike, interstate, U.S. or state highway, unless
24 a greater height is authorized by a special permit issued by the

1 Executive Director of the Department of Transportation or an
2 authorized representative of the Department of Transportation
3 specifying the highways to be used, consistent with public
4 convenience and safety. The prohibitions on movement as prescribed
5 in subsection F of Section 14-101 of this title and paragraph 1 of
6 subsection G of Section 14-101 of this title shall not apply to
7 vehicles operated pursuant to such permits;

8 2. An official state bridge vertical clearance map providing
9 clearance heights as posted for bridges on the interstate, U.S. and
10 state highway systems shall be available on the Oklahoma Department
11 of Transportation website; and

12 3. Operators and owners of vehicles which exceed or have loads
13 which exceed thirteen and one-half (13 1/2) feet shall be held
14 liable for all damages to any part of structures spanning the
15 highway or damages suffered by other affected parties caused by the
16 vehicle or load exceeding the posted height.

17 C. Except as otherwise provided for by this chapter:

18 1. No single truck, with or without load, shall have an overall
19 length, inclusive of front and rear bumpers, in excess of forty-five
20 (45) feet;

21 2. No single bus, with or without load, shall have an overall
22 length, inclusive of front and rear bumpers, in excess of forty-five
23 (45) feet;

- 1 3. a. On the National Network of Highways which includes the
2 National System of Interstate and Defense Highways and
3 four-lane divided Federal Aid Primary System Highways,
4 no semitrailer operating in a truck-
5 tractor/semitrailer combination shall have a length
6 greater than fifty-three (53) feet, except as provided
7 in subsection C of Section 14-118 of this title which
8 shall apply to semitrailers exceeding fifty-three (53)
9 feet but not exceeding fifty-nine (59) feet six (6)
10 inches. On the National System of Interstate and
11 Defense Highways and four-lane divided Federal Aid
12 Primary System Highways, no semitrailer or trailer
13 operating in a truck-tractor/semitrailer and trailer
14 combination shall have a length greater than fifty-
15 three (53) feet;
- 16 b. On roads and highways not a part of the National
17 System of Interstate and Defense Highways or four-lane
18 divided Federal Aid Primary System Highways, no
19 semitrailer operating in a truck-tractor/semitrailer
20 combination shall have a length greater than fifty-
21 three (53) feet and no semitrailer or trailer
22 operating in a truck-tractor/semitrailer and trailer
23 combination shall have a length greater than twenty-
24 nine (29) feet. Except as provided for in subsection

1 D of Section 14-118 of this title, no other
2 combination of vehicles shall have an overall length,
3 inclusive of front and rear bumpers, in excess of
4 seventy (70) feet on all roads and highways. For the
5 purposes of this paragraph, oil field rig-up trucks
6 shall be considered to be truck-tractors, when towing
7 a trailer or semitrailer;

8 c. On the National Network of Highways the overall length
9 limitation of a towaway trailer transporter
10 combination may exceed length restrictions up to
11 eighty-two (82) feet;

12 d. As used in this section:

13 (1) The term "trailer transporter towing unit" shall
14 mean a power unit that is not used to carry
15 property when operating in a towaway trailer
16 transporter combination, and

17 (2) The term "towaway trailer transporter
18 combination" shall mean a combination of vehicles
19 consisting of a trailer transporter towing unit
20 and two (2) trailers or semitrailers with a total
21 weight that does not exceed twenty-six thousand
22 (26,000) pounds; and in which the trailers or
23 semitrailers carry no property and constitute
24

inventory property of a manufacturer, distributor
or dealer of such trailers or semitrailers;

4. No combination of vehicles shall consist of more than two
units, except:

- a. one truck and semitrailer or truck-tractor/semitrailer
combination may tow one complete trailer or
semitrailer, or
- b. vans, suburbans, blazers or other similar types of
vehicles and self-propelled recreational vehicles with
a three-quarter (3/4) ton or more rated capacity may
tow a semitrailer and one complete trailer or
semitrailer for recreational purposes only, provided
the overall length, inclusive of the front and rear
bumpers, does not exceed sixty-five (65) feet;

5. Poles and gas lines used to maintain public utility
services, not to include new construction, may be moved during
daylight hours, and during nighttime hours only in an emergency,
subject to traffic and road restrictions promulgated by the
Executive Director of the Department of Transportation, when the
overall length does not exceed eighty (80) feet. When this length
is exceeded, these loads are subject to the requirements of Section
14-118 of this title;

6. For the purposes of paragraphs 1, 3, and 4 of this
subsection, the length of unitized equipment, which is defined to be

1 equipment so constructed and attached to a rubber-tired vehicle that
2 the vehicle and load become a unit and are for all practical
3 purposes inseparable, shall be the length of the vehicle itself, and
4 shall not include any protrusion of the equipment load so
5 constructed or attached. The equipment shall not protrude for a
6 distance greater than two-thirds (2/3) of the wheel base of the
7 vehicle, shall not impair the driver's vision, and if less than
8 seven (7) feet above the roadway, shall be safely marked, flagged or
9 illuminated. Any such protruding structure shall be securely held
10 in place to prevent dropping or swaying. Unitized equipment shall
11 carry such safety equipment as shall be determined to be necessary
12 for the safety, health, and welfare of the driving public by the
13 Executive Director of the Department of Transportation;

14 7. For the purposes of paragraphs 1, 3, and 4 of this
15 subsection, a truck-tractor, when being towed by another vehicle
16 with the wheels of its steering axle raised off the roadway, shall
17 be considered to be a semitrailer as defined in Section 1-162 of
18 this title;

19 8. The provisions of paragraphs 1 and 3 of this subsection
20 shall not apply to any contractor or subcontractor, or agents or
21 employees of any contractor or subcontractor, while engaged in
22 transporting material to the site of a project being constructed by,
23 for, or on behalf of this state or any city, town, county, or
24 subdivision of this state; and

1 9. Special mobilized machinery, as defined in Section 1102 of
2 this title, which exceeds the size provisions of this section shall
3 only use the highways of this state by special permit issued by the
4 Executive Director of the Department of Transportation or an
5 authorized representative of the Executive Director of the
6 Department of Transportation. Such special permit shall be:

7 a. a single-trip permit issued under the provisions of
8 Section 14-116 of this title, or

9 b. a special annual oversize permit issued for one (1)
10 calendar year period upon payment of a fee of ~~Ten~~
11 ~~Dollars (\$10.00)~~ Fifteen Dollars (\$15.00) plus any
12 amount as provided by subsection H of Section 14-118
13 of this title.

14 SECTION 3. AMENDATORY 47 O.S. 2021, Section 14-103G, as
15 amended by Section 7, Chapter 116, O.S.L. 2022 (47 O.S. Supp. 2024,
16 Section 14-103G), is amended to read as follows:

17 Section 14-103G. A. 1. The Department of Transportation may
18 issue an annual vehicle permit under the provisions of this
19 subsection to a specific vehicle, for the movement of oversize or
20 overweight loads that cannot reasonably be dismantled. Unless
21 otherwise provided by law, permits issued under this subsection
22 shall be subject to the conditions described in paragraphs 2 through
23 8 of this subsection.

1 2. Oversize or overweight loads operating under an annual
2 vehicle permit shall not exceed:

- 3 a. twelve (12) feet in width,
- 4 b. fourteen (14) feet in height,
- 5 c. one hundred ten (110) feet in length, or
- 6 d. one hundred twenty thousand (120,000) pounds gross
7 weight.

8 3. Oversize or overweight loads operating under an annual
9 vehicle permit under this subsection shall not transport a load that
10 has more than a twenty-five-foot front overhang, or more than a
11 thirty-foot rear overhang.

12 4. The fee for an annual vehicle permit shall be ~~Four Thousand~~
13 ~~Dollars (\$4,000.00)~~ Five Thousand Four Hundred Forty Dollars
14 (\$5,440.00) and shall be nonrefundable.

15 5. The annual vehicle permit shall be issued for one (1)
16 calendar year period and shall commence upon the date specified on
17 the permit.

18 6. An annual vehicle permit issued pursuant to this subsection
19 shall be nontransferable between permittees.

20 7. The permitted vehicle or vehicle combination shall be
21 registered in accordance with the provisions of Chapter 14 of this
22 title for maximum weight.

1 8. An annual vehicle permit issued pursuant to this subsection
2 may be transferred from one vehicle to another vehicle in the fleet
3 of the permittee provided:

4 a. the permitted vehicle is destroyed or otherwise
5 becomes permanently inoperable to the extent that the
6 vehicle will no longer be utilized, and the permittee
7 presents proof to the Department of Transportation
8 that the negotiable certificate of title or other
9 qualifying documentation has been surrendered to the
10 Department of Transportation, or

11 b. the certificate of title to the permitted vehicle is
12 transferred to someone other than the permittee, and
13 the permittee presents proof to the Department of
14 Transportation that the negotiable certificate of
15 title or other qualifying documentation has been
16 transferred from the permittee.

17 9. A permit issued for loads specific to turbine blades, used
18 for the purpose of wind generation, may exceed a length of one
19 hundred ten (110) feet.

20 B. 1. The Department of Transportation may issue an annual
21 vehicle permit under this subsection to a specific motor carrier,
22 for the movement of oversize or overweight loads that cannot
23 reasonably be dismantled. An annual vehicle permit issued under
24

1 this subsection may be transferred from one vehicle to another
2 vehicle in the fleet of the permittee provided:

- 3 a. that no more than one vehicle is operating at a time,
4 and
- 5 b. the original certified permit is carried in the
6 vehicle that is being operated under the terms of the
7 permit.

8 2. An annual vehicle permit issued under this subsection shall
9 be sent to the permittee via first-class, registered mail, or at the
10 request and expense of the permittee via overnight delivery service.
11 The annual vehicle permit shall not be duplicated. The annual
12 vehicle permit shall be replaced only if:

- 13 a. the permittee did not receive the original permit
14 within seven (7) business days after the date of
15 issuance,
- 16 b. a request for replacement is submitted to the
17 Department of Transportation within ten (10) business
18 days after the original date of issuance of the
19 permit, and
- 20 c. the request for replacement is accompanied by a
21 notarized statement signed by a principal or officer
22 of the permittee acknowledging that the permittee
23 understands the permit may not be duplicated and that
24 if the original permit is located, the permittee shall

1 return either the original or replacement permit to
2 the Department of Transportation.

3 3. A request for replacement of an annual vehicle permit issued
4 pursuant to the provisions of this subsection shall be denied if the
5 Department of Transportation can verify that the permittee received
6 the original annual vehicle permit.

7 4. Lost, misplaced, damaged, destroyed or otherwise unusable
8 annual vehicle permits shall not be replaced. A new permit shall be
9 required and shall be issued by the Department of Transportation.

10 C. 1. The Department of Transportation may issue an annual
11 fleet permit under this subsection to an electric utility, regulated
12 by the Corporation Commission or a rural electric cooperative solely
13 for the movement of poles. An annual fleet permit issued under this
14 subsection may be used by any vehicle in the fleet of the permittee
15 provided that a certified copy of the permit is carried in each
16 vehicle that is being operated under the terms of the permit.

17 2. Oversize loads operating under an annual permit issued
18 pursuant to this subsection shall not exceed:

- 19 a. twelve (12) feet in width,
20 b. fourteen (14) feet in height, or
21 c. fifty-five (55) feet in length.

22 3. The annual fee for an annual fleet permit issued pursuant to
23 this subsection shall be ~~Four Thousand Dollars (\$4,000.00)~~ Five
24

1 Thousand Two Hundred Seventy Dollars (\$5,270.00) and shall be
2 nonrefundable.

3 4. The annual fleet permit shall be issued for a one-calendar-
4 year period and shall commence upon the date specified on the
5 permit.

6 5. The annual fleet permit issued under this subsection shall
7 be sent to the permittee via first class, registered mail, or at the
8 request and expense of the permittee via overnight delivery service.
9 The annual permit shall be replaced only if:

10 a. the permittee did not receive the original permit
11 within seven (7) business days after the date of the
12 issuance,

13 b. a request for replacement is submitted to the
14 Department of Transportation within ten (10) business
15 days after the original date of issuance of the
16 permit, and

17 c. the request for replacement is accompanied by a
18 notarized statement signed by an authorized person of
19 the permittee acknowledging that if the original
20 permit is located, the permittee shall either return
21 the original or replacement permit to the Department
22 of Transportation.

23 6. A request for replacement of an annual permit issued under
24 the provisions of this subsection shall be denied if the Department

1 of Transportation can verify the permittee received the original
2 annual permit.

3 7. Lost, misplaced, damaged, destroyed or otherwise unusable
4 annual permits shall not be replaced. A new permit shall be
5 required and shall be issued by the Department of Transportation.

6 8. For the purposes of paragraph 5 of subsection C of Section
7 14-103 of this title, the term "emergency" means any permitted
8 movement of poles pursuant to the provisions of this subsection that
9 is not for new construction of electric distribution facilities.

10 D. 1. The Department of Transportation shall issue an annual
11 vehicle permit under this subsection to a transportation company or
12 manufacturer of portable buildings solely for the movement of
13 oversize portable buildings for a specific manufacturer of portable
14 buildings. An annual vehicle permit issued under this subsection
15 may not be transferred from one vehicle to another vehicle in the
16 fleet. The name of the manufacturer shall be on the permit and on
17 any portable building being moved. The original certified permit
18 shall be carried in the vehicle that is being operated under the
19 terms of the permit.

20 2. Oversize loads operating under an annual vehicle permit
21 issued pursuant to this subsection shall not exceed:

- 22 a. twelve (12) feet in width at the wall with no more
23 than a three-inch-eave overhang, or
24 b. fourteen (14) feet in height.

1 3. The total gross weight of oversize loads operating under an
2 annual vehicle permit issued pursuant to this subsection shall not
3 exceed forty-five thousand (45,000) pounds.

4 4. The tow vehicle shall be limited to two axles, and the
5 vehicle identification number of the vehicle shall be on the permit.

6 5. The fee for an annual vehicle permit issued pursuant to this
7 subsection shall be ~~Five Hundred Dollars (\$500.00)~~ Six Hundred Sixty
8 Dollars (\$660.00) and shall be nonrefundable.

9 6. An annual vehicle permit issued under this subsection shall
10 be sent to the permittee via first-class, registered mail, or at the
11 request and expense of the permittee via overnight delivery service.
12 The annual vehicle permit shall not be duplicated. The annual
13 vehicle permit shall be replaced only if:

14 a. the permittee did not receive the original permit
15 within seven (7) business days after the date of
16 issuance,

17 b. a request for replacement is submitted to the
18 Department of Transportation within ten (10) business
19 days after the original date of issuance of the
20 permit, and

21 c. the request for replacement is accompanied by a
22 notarized statement signed by a principal or officer
23 of the permittee acknowledging that the permittee
24 understands the permit may not be duplicated and that

1 if the original permit is located, the permittee shall
2 return either the original or replacement permit to
3 the Department of Transportation.

4 7. A request for replacement of an annual vehicle permit issued
5 pursuant to the provisions of this subsection shall be denied if the
6 Department of Transportation can verify that the permittee received
7 the original annual vehicle permit.

8 8. A lost, misplaced, damaged, destroyed, or otherwise unusable
9 annual vehicle permit shall be replaced for a fee of ~~Twenty-five~~
10 ~~Dollars (\$25.00)~~ Thirty-five Dollars (\$35.00).

11 SECTION 4. AMENDATORY 47 O.S. 2021, Section 14-109, as
12 amended by Section 8, Chapter 116, O.S.L. 2022 (47 O.S. Supp. 2024,
13 Section 14-109), is amended to read as follows:

14 Section 14-109. A. On any road or highway:

15 1. No single axle weight shall exceed twenty thousand (20,000)
16 pounds; and

17 2. The total gross weight in pounds imposed thereon by a
18 vehicle or combination of vehicles shall not exceed the value
19 calculated in accordance with the Federal Bridge formula imposed by
20 23 U.S.C., Section 127.

21 B. Except as to gross limits, the formula of this section shall
22 not apply to a truck-tractor and dump semitrailer when used as a
23 combination unit. In no event shall the maximum load in pounds
24 carried by any set of tandem axles exceed thirty-four thousand

1 (34,000) pounds. Any vehicle operating with split tandem axles or
2 tri-axles shall adhere to the formula.

3 C. Except for loads moving under special permits as provided in
4 this title, no department or agency of this state or any county,
5 city, or public entity thereof shall pay for any material that
6 exceeds the legal weight limits moving in interstate or intrastate
7 commerce in excess of the legal load limits of this state.

8 D. 1. An annual special overload permit may be purchased for
9 vehicles transporting roll-off recycle metals, rock, sand, gravel,
10 coal, flour, timber, pulpwood, and chips in their natural state, oil
11 field fluids, oil field equipment or equipment used in oil and gas
12 well drilling or exploration, and vehicles transporting grain,
13 fertilizer, cottonseed, cotton, livestock, peanuts, canola,
14 sunflowers, soybeans, feed, any other raw agricultural products, and
15 any other unprocessed agricultural products, if the following
16 conditions are met:

- 17 a. the vehicles are registered for the maximum allowable
18 rate,
- 19 b. the vehicles do not exceed five percent (5%) of the
20 gross limits set forth in subsection A of this
21 section,
- 22 c. the vehicles do not exceed eight percent (8%) of the
23 axle limits set forth in subsection A of this section,
24

- d. no component of the vehicles exceeds the manufacturer's component weight rating as shown on the vehicle certification label or tag, and
- e. the vehicles operating pursuant to the provisions of this paragraph will not be allowed to operate on the National System of Interstate and Defense Highways.

2. Vehicles operating pursuant to this section must register for the maximum allowable rate and additionally shall purchase a nontransferable annual special overload permit from the Department of Transportation for a fee of ~~Three Hundred Fifty Dollars (\$350.00)~~ Four Hundred Sixty Dollars (\$460.00). All monies collected shall be deposited to the credit of the Highway Construction and Maintenance Fund.

E. 1. Oversize or overweight vehicles used for specialized transportation if the maximum weight does not exceed twenty-three thousand (23,000) pounds on any single axle and:

- a. is a dual lane trailer with dual lane axles and the width of the transport vehicle or trailer exceeds twelve (12) feet in width, or
- b. the overall gross vehicle weight of a single trailer meets or exceeds three hundred thousand (300,000) pounds, originates or terminates at the Tulsa Port of Catoosa, and the trip is confined within a thirty-mile radius of the Port.

1 2. Permit fees for oversize or overweight vehicles used for
2 specialized transportation shall be in accordance with subsection A
3 of Section 14-116 of this title.

4 3. Vehicles operating pursuant to the provisions of this
5 paragraph will not be allowed to operate on the National System of
6 Interstate and Defense Highways.

7 F. Exceptions to this section will be:

8 1. Utility or refuse collection vehicles used by counties,
9 cities, or towns or by private companies contracted by counties,
10 cities, or towns if the following conditions are met:

11 a. calculation of weight for a utility or refuse
12 collection vehicle shall be "Gross Vehicle Weight".
13 The "Gross Vehicle Weight" of a utility or refuse
14 collection vehicle may not exceed the otherwise
15 applicable weight by more than fifteen percent (15%).
16 The weight on individual axles must not exceed the
17 manufacturer's component rating which includes axle,
18 suspension, wheels, rims, brakes, and tires as shown
19 on the vehicle certification label or tag, and

20 b. utility or refuse collection vehicles operated under
21 these exceptions will not be allowed to operate on
22 interstate highways;

23 2. A combination of a wrecker or tow vehicle and another
24 vehicle or vehicle combination if:

1 a. the service provided by the wrecker or tow vehicle is
2 needed to remove disabled, abandoned, or accident-
3 damaged vehicles, and

4 b. the wrecker or tow vehicle is towing the other vehicle
5 or vehicle combination directly to the nearest
6 appropriate place of repair, terminal, or vehicle
7 storage facility;

8 3. A vehicle operating pursuant to the provisions of paragraph
9 2 of this subsection shall not be allowed to operate on the National
10 System of Interstate and Defense Highways unless it is a covered
11 heavy-duty tow and recovery vehicle that:

12 a. is transporting a disabled vehicle from the place
13 where the vehicle became disabled to the nearest
14 appropriate repair facility, and

15 b. has a gross vehicle weight that is equal to or exceeds
16 the gross vehicle weight of the disabled vehicle being
17 transported; and

18 4. On the interstate highway system a vehicle designed to be
19 used under emergency conditions to transport personnel and equipment
20 and to support the suppression of fires and mitigation of other
21 hazardous situations with a vehicle weight limit up to a maximum
22 gross vehicle weight of eighty-six thousand (86,000) pounds with
23 less than:
24

- a. twenty-four thousand (24,000) pounds on a single steering axle,
- b. thirty-three thousand five hundred (33,500) pounds on a single drive axle,
- c. sixty-two thousand (62,000) pounds on a tandem axle, or
- d. fifty-two thousand (52,000) pounds on a tandem rear drive steer axle.

G. 1. Any vehicle utilizing an auxiliary power or idle reduction technology unit in order to promote reduction of fuel use and emissions because of engine idling shall be allowed an additional four hundred (400) pounds total to the total gross weight limits set by this section.

2. To be eligible for the exception provided in this subsection, the operator of the vehicle must obtain written proof or certification of the weight of the auxiliary power or idle reduction technology unit and be able to demonstrate or certify that the idle reduction technology is fully functional.

3. Written proof or certification of the weight of the auxiliary power or idle reduction technology unit must be available to law enforcement officers if the vehicle is found in violation of applicable weight laws. The additional weight allowed cannot exceed four hundred (400) pounds or the actual proven or certified weight of the unit, whichever is less.

1 H. On the Interstate Highway System, a vehicle carrying fluid
2 milk products shall be considered a load that cannot be easily
3 dismantled or divided, or "nondivisible".

4 I. Utility, refuse collection vehicles or a combination of a
5 wrecker or tow vehicle as described in paragraphs 1 and 2 of
6 subsection F of this section operating under exceptions shall
7 purchase an annual special overload permit from the Department of
8 Transportation for ~~One Hundred Dollars (\$100.00)~~ One Hundred Thirty
9 Dollars (\$130.00). All monies collected shall be deposited to the
10 credit of the Highway Construction and Maintenance Fund.

11 SECTION 5. AMENDATORY 47 O.S. 2021, Section 14-116, as
12 amended by Section 9, Chapter 116, O.S.L. 2022 (47 O.S. Supp. 2024,
13 Section 14-116), is amended to read as follows:

14 Section 14-116. A. The Executive Director of the Department of
15 Transportation shall charge a minimum permit fee of ~~Forty Dollars~~
16 ~~(\$40.00)~~ Fifty Five Dollars (\$55.00) for any permit issued pursuant
17 to the provisions of Section 14-101 et seq. of this title. In
18 addition to the permit fee, the Executive Director of the Department
19 of Transportation shall charge a fee of ~~Ten Dollars (\$10.00)~~ Fifteen
20 Dollars (\$15.00) for each thousand pounds in excess of the legal
21 load limit. The Executive Director of the Department of
22 Transportation shall establish any necessary rules for collecting
23 the fees.
24

1 B. The Department of Transportation is authorized to establish
2 an escrow account system for the payment of permit fees. Authorized
3 motor carriers meeting established credit requirements may
4 participate in the escrow account system for permits purchased from
5 all size and weight permit offices in this state. Carriers not
6 choosing to participate in the escrow account system shall be
7 required to make payment of the required fee or fees upon purchase
8 of each permit as required by law. All monies collected through the
9 escrow account system shall be deposited to a special account of the
10 Department of Transportation and placed in the custody of the State
11 Treasurer. Proceeds from permits purchased using the escrow account
12 system shall be distributed as provided for in subsection H of this
13 section. However, fees collected through such accounts for the
14 electronic transmission, transfer or delivery of permits, as
15 provided for in Section 14-118 of this title, shall be credited to
16 the Weigh Station Improvement Revolving Fund established pursuant to
17 Section 1167 of this title.

18 C. 1. Application for permits shall be made a reasonable time
19 in advance of the expected time of movement of such vehicles. For
20 emergencies affecting the health or safety of persons or a
21 community, permits may be issued for immediate movement.

22 2. Size and weight permit offices in all districts where
23 applicable shall issue permits to authorize carriers by telephone
24 during weekdays.

1 D. No overweight permit shall be valid until all license taxes
2 due the State of Oklahoma have been paid.

3 E. No permit violation shall be deemed to have occurred when an
4 oversize or overweight movement is made pursuant to a permit whose
5 stated weight or size exceeds the actual load.

6 F. Any permit issued for a truck or truck-tractor operating in
7 combination with a trailer or a semitrailer shall contain only the
8 license plate number for the truck or truck-tractor if the permittee
9 provides to the Department of Transportation a list containing the
10 license plate number, and such other information as the Department
11 of Transportation may prescribe by rule, for each trailer or
12 semitrailer which may be used for movement with the permit. When
13 the permittee provides the list described in this subsection, the
14 license plate number for any trailer or semitrailer to be moved with
15 the permit shall not be included on the permit; provided, a trailer
16 or semitrailer which is not on the list shall not be authorized to
17 be used for movement with the permit. It shall be the
18 responsibility of the permittee to ensure the list provided to the
19 Department of Transportation is maintained and updated with any
20 fleet changes. The Department of Transportation shall adopt any
21 rules deemed necessary to administer the provisions of this
22 subsection.

23 G. The first deliverer of motor vehicles designated truck
24 carriers or well service carriers manufactured in Oklahoma shall not

1 be required to purchase an overweight permit when being delivered to
2 the first purchaser.

3 H. Except as provided in Section 14-122 of this title, the
4 first One Million Two Hundred Sixteen Thousand Dollars
5 (\$1,216,000.00) of proceeds from both the permit fees and the
6 overweight permit fees imposed pursuant to subsection A of this
7 section collected monthly shall be apportioned as provided in
8 Section 1104 of this title. For the fiscal year beginning July 1,
9 2022, and all subsequent years, the next Two Million Five Hundred
10 Thousand Dollars (\$2,500,000.00) of proceeds from both the permit
11 fees and the overweight permit fees imposed pursuant to subsection A
12 of this section collected monthly shall be remitted to the
13 Department of Public Safety for the purpose of staffing the port of
14 entry weigh stations with Department of Public Safety port of entry
15 officers whose powers and duties shall be specified by the
16 Department of Public Safety through the promulgation of rules. For
17 the fiscal year beginning July 1, 2017, and all subsequent years,
18 all proceeds collected from both the permit fees and the overweight
19 permit fees imposed pursuant to subsection A of this section in
20 excess of Three Million Seven Hundred Sixteen Thousand Dollars
21 (\$3,716,000.00) shall be deposited in the Weigh Station Improvement
22 Revolving Fund as provided in Section 1167 of this title for the
23 purpose set forth in that section and may be used for motor carrier
24 permitting systems and motor carrier safety and enforcement.

1 SECTION 6. AMENDATORY 47 O.S. 2021, Section 14-118, as
2 amended by Section 11, Chapter 116, O.S.L. 2022 (47 O.S. Supp. 2024,
3 Section 14-118), is amended to read as follows:

4 Section 14-118. A. 1. Pursuant to such rules as may be
5 prescribed by Oklahoma agencies of jurisdiction, Oklahoma motor
6 carriers may engage in any activity in which carriers subject to the
7 jurisdiction of the federal government may be authorized by federal
8 legislation to engage. Provided further, the Transportation
9 Commission shall formulate for the State Trunk Highway System,
10 including the National System of Interstate and Defense Highways,
11 and for all other highways or portions thereof, rules governing the
12 movement of vehicles or loads which exceed the size or weight
13 limitations specified by the provisions of this chapter.

14 2. Such rules shall be the basis for the development of a
15 system by the Executive Director of the Department of Transportation
16 for the issuance of permits for the movement of oversize or
17 overweight vehicles or loads. Such system shall include, but not be
18 limited to, provisions for duration, seasonal factors, hours of the
19 day or days when valid, special requirements as to flags, flagmen
20 and warning or safety devices and other such items as may be
21 consistent with the intent of this section. The permit system shall
22 include provisions for the collection of permit fees as well as for
23 the issuance of the permits by telephone, electronic transfer or
24 such other methods of issuance as may be deemed feasible.

1 3. The Department of Transportation is authorized to charge a
2 fee of ~~Two Dollars (\$2.00)~~ Three Dollars (\$3.00) for each permit
3 requested to be issued by facsimile machine or by any other means of
4 electronic transmission, transfer or delivery. The fee shall be in
5 addition to any other fee or fees assessed for the permit. The fee
6 shall be deposited in the State Treasury to the credit of the
7 Department of Transportation and the monies shall be expended by the
8 Department of Transportation solely for the purposes provided for in
9 this chapter.

10 4. It is the purpose of this section to permit the movement of
11 necessary overweight and oversize vehicles or loads consistent with
12 the following obligations:

- 13 a. protection of the motoring public from potential
14 traffic hazards,
- 15 b. protection of highway surfaces, structures, and
16 private property, and
- 17 c. provision for normal flow of traffic with a minimum of
18 interference.

19 B. The Transportation Commission shall prepare and publish a
20 map of this state showing by appropriate symbols the various highway
21 structures and bridges in terms of maximum size and weight
22 restrictions. This map shall be titled "Oklahoma Load Limit Map"
23 and shall be revised periodically to maintain a reasonably current
24 status and in no event shall a period of two (2) years lapse between

1 revisions and publication of the printed version of the Oklahoma
2 Load Limit Map. This map shall also be made available by the
3 Department of Transportation on the Internet, and in no event shall
4 a period of six (6) months lapse between revisions of the
5 information provided on the Internet. Provided, further, the
6 Secretary of the Department of Transportation shall prepare and
7 publish a map of this state showing the advantages of this state as
8 a marketing, warehousing and distribution network center for motor
9 transportation sensitive industries.

10 C. The Executive Director of the Department of Transportation,
11 or an authorized representative, shall have the authority, within
12 the limitations formulated under provisions of this chapter, to
13 issue, withhold or revoke special permits for the operation of
14 vehicles or combinations of vehicles or loads which exceed the size
15 or weight limitations of this chapter. Every such permit shall be
16 carried in the vehicle or combination of vehicles to which it refers
17 and shall be open to inspection by any law enforcement officer or
18 authorized agent of any authority granting such permit, and no
19 person shall violate any of the terms or conditions of such special
20 permit.

21 D. It shall be permissible in the transportation of empty
22 trucks on any road or highway to tow by use of saddlemounts, i.e.,
23 mounting the front wheels of one vehicle on the bed of another
24 leaving the rear wheels only of such towed vehicle in contact with

1 the roadway. One vehicle may be fullmounted on the towing or towed
2 vehicles engaged in any driveway or towaway operation. No more
3 than three saddlemounts may be permitted in such combinations. The
4 towed vehicles shall be securely fastened and operated under the
5 applicable safety requirements of the United States Department of
6 Transportation and such combinations shall not exceed an overall
7 length of seventy-five (75) feet. Provided, a driveway saddlemount
8 with fullmount vehicle transporter combination may reach an overall
9 length of ninety-seven (97) feet on the National Network of
10 Highways.

11 E. The Executive Director of the Department of Transportation,
12 upon application of any person engaged in the transportation of
13 forest products in the raw state, which is defined to be tree-length
14 logs moving from the forest directly to the mill, or upon
15 application of any person engaged in the hauling for hire or for
16 resale of round baled hay with a total outside width of eleven (11)
17 feet or less, shall issue an annual permit, upon payment of a fee of
18 ~~Twenty-five Dollars (\$25.00)~~ Thirty-five Dollars (\$35.00) each year,
19 authorizing the operation by such persons of such motor vehicle load
20 lengths and widths upon the highways of this state except on the
21 National System of Interstate and Defense Highways. Provided,
22 however, the restriction on use of the National System of Interstate
23 and Defense Highways shall not be applicable to persons engaged in
24

1 the hauling of round baled hay with a total outside width of eleven
2 (11) feet or less.

3 F. The Executive Director of the Department of Transportation,
4 upon application of any person engaged in the transportation of
5 overwidth or overheight equipment used in soil conservation work
6 with a total outside width of twelve (12) feet or less, shall issue
7 an annual permit, upon payment of a fee of ~~Twenty-five Dollars~~
8 ~~(\$25.00)~~ Thirty-five Dollars (\$35.00) each year, authorizing the
9 operation by such persons of such motor vehicle load lengths and
10 widths upon the highways of this state except on the National System
11 of Interstate and Defense Highways.

12 G. Farm equipment including, but not limited to, implements of
13 husbandry as defined in Section 1-125 of this title shall be
14 exempted from the requirement for special permits due to size. Such
15 equipment may move on any highway, except those highways which are
16 part of the National System of Interstate and Defense Highways,
17 during the hours of darkness and shall be subject to the
18 requirements as provided in Section 12-215 of this title. In
19 addition to those requirements, tractors pulling machinery over
20 thirteen (13) feet wide must have two amber flashing warning lamps
21 symmetrically mounted, laterally and widely spaced as practicable,
22 visible from both front and rear, mounted at least thirty-nine (39)
23 inches high.

1 H. Any rubber-tired road construction vehicle including rubber-
2 tired truck cranes and special mobilized machinery either self-
3 propelled or drawn carrying no load other than component parts
4 safely secured to the machinery and its own weight, but which is
5 overweight by any provisions of this chapter, shall be authorized to
6 move on the highways of this state. Movement of such vehicles shall
7 be authorized on the National System of Interstate and Defense
8 Highways only by special permit secured from the Executive Director
9 of the Department of Transportation or an authorized representative
10 upon determination that the objectives of this section will be
11 served by such a permit and that federal weight restrictions will
12 not be violated. The special permit shall be:

13 1. A single-trip permit issued under the provisions of this
14 section and Section 14-116 of this title; or

15 2. A special annual overweight permit which shall be issued for
16 one calendar year period upon payment of a fee of ~~Sixty Dollars~~
17 ~~(\$60.00)~~ Eighty-five Dollars (\$85.00).

18 The weight of any such vehicle shall not exceed six hundred
19 fifty (650) pounds multiplied by the nominal width of the tire. The
20 vehicle shall be required to carry the safety equipment adjudged
21 necessary for the health and welfare of the driving public. If any
22 oversized vehicle does not come under the other limitations of the
23 present laws, it shall be deemed that the same shall travel only
24 between the hours of sunrise and sunset. The vehicle, being

1 overweight but of legal dimension, shall be allowed continuous
2 travel. The vehicles, except special mobilized machinery, shall be
3 exempt from the laws of this state relating to motor vehicle
4 registration, licensing or other fees or taxes in lieu of ad valorem
5 taxes.

6 I. 1. When such machinery has a width greater than eight and
7 one-half (8 1/2) feet, or a length, exclusive of load, of forty-five
8 (45) feet, or a height in excess of thirteen and one-half (13 1/2)
9 feet, then the permit may restrict movement to a fifty-mile radius
10 from an established operating base, and may designate highways to be
11 traveled, hours of travel and when flagmen may be required to
12 precede or follow the equipment.

13 2. Possession of a permit shall in no way be construed as
14 exempting such equipment from the authority of the Executive
15 Director of the Department of Transportation to restrict use of
16 particular highways, nor shall it exempt owners or operators of such
17 equipment from the responsibility for damage to highways caused by
18 movement of the equipment. Nothing in this subsection shall apply
19 to machinery used in highway construction or road material
20 production.

21 3. Upon the issuance of a special mobilized machinery driveaway
22 permit as provided in this subsection, special mobilized machinery
23 manufactured in Oklahoma shall be permitted to move upon the
24 highways of this state from the place of manufacture to the state

1 line for delivery and exclusive use outside the state, and may be
2 temporarily returned to Oklahoma for modification and repair, with
3 subsequent movement back out of the state. Special driveway
4 permits for such movements shall be issued by the Executive Director
5 of the Department of Transportation, who may act through designated
6 agents, upon the payment of a fee in the amount of ~~Fifteen Dollars~~
7 ~~(\$15.00)~~ Twenty Dollars (\$20.00) for each movement.

8 4. The size of the special mobilized machinery shall not be
9 such as to create a safety hazard in the judgment of the Executive
10 Director of the Department of Transportation. Permits for such
11 special mobilized machinery shall specify a maximum permissible road
12 speed of sixty (60) miles per hour, designate safety equipment to be
13 carried and may exclude use of highways of the interstate system.

14 5. When such equipment has a width greater than eight and one-
15 half (8 1/2) feet, or a length exclusive of load of forty-five (45)
16 feet, or a height in excess of thirteen and one-half (13 1/2) feet,
17 the permit may designate highways to be traveled, hours of travel
18 and when flagmen may be required to precede or follow the equipment.

19 6. Possession of a special driveway permit shall in no way be
20 construed as exempting such equipment from the authority of the
21 Executive Director of the Department of Transportation to restrict
22 use of particular highways, nor shall it exempt the owners or
23 operators of such equipment from the responsibility for damage to
24 highways caused by the movement of such equipment.

1 SECTION 7. AMENDATORY 47 O.S. 2021, Section 14-120, as
2 amended by Section 13, Chapter 116, O.S.L. 2022 (47 O.S. Supp. 2024,
3 Section 14-120), is amended to read as follows:

4 Section 14-120. A. Manufactured items, with the exception of
5 manufactured homes as defined in Section 1102 of this title and
6 industrialized housing as described in subsection B of Section 14-
7 103A of this title, exceeding sixteen (16) feet but not exceeding
8 twenty-three (23) feet in width traveling:

9 1. From a point of manufacture in this state to a point of
10 delivery in this state or to a point of delivery in another state;
11 or

12 2. From a point of manufacture outside this state to a point of
13 delivery in this state or to a point of delivery in another state
14 shall be permitted, upon receipt of a special movement permit issued
15 under the provisions of subsection B of this section, to travel on
16 any state or U.S. highway in Oklahoma. Provided, however, the
17 Executive Director of the Department of Transportation is authorized
18 to allow such items in excess of twenty-three (23) feet in width to
19 travel on such highway if it is in the best interest of the state
20 and a special moving permit has been issued. Provided, further,
21 that no such load in excess of the limitations set forth in the
22 applicable United States Code shall be permitted to travel upon any
23 portion of the National System of Interstate and Defense Highways.

1 B. Every person desiring to transport manufactured items
2 pursuant to the provisions of this section shall apply to the
3 Department of Transportation for a special movement permit on an
4 application form prescribed by the Department. Upon approval of the
5 application by the Department of Transportation, a special movement
6 permit shall be issued for a fee of ~~Five Hundred Dollars (\$500.00)~~
7 Seven Hundred Fifteen Dollars (\$715.00). Except as provided in
8 Section 14-122 of this title, monies received from such special
9 movement permit fees shall be deposited in the State Treasury to the
10 credit of the General Revenue Fund. A permit issued pursuant to the
11 provisions of this subsection shall expire upon the completion of
12 one trip specified in subsection A of this section. The special
13 movement permit, and fee related thereto, shall be in addition to
14 the permit and fees required by Section 14-116 of this title.

15 C. Highway escorts shall be required for transportation of
16 items pursuant to the provisions of this section according to rules
17 and regulations prescribed by the Department of Transportation.

18 SECTION 8. AMENDATORY 47 O.S. 2021, Section 14-121, as
19 amended by Section 16, Chapter 116, O.S.L. 2022 (47 O.S. Supp. 2024,
20 Section 14-121), is amended to read as follows:

21 Section 14-121. A. No person shall operate a special
22 combination vehicle within this state without a special combination
23 vehicle permit for the vehicle issued by the Department of
24 Transportation. Such permit may be issued for operation upon

1 Federal Aid Interstate Highways or four-lane divided Federal Aid
2 Primary Highways and for access or egress between points of origin
3 or destination.

4 B. The Executive Director of the Department of Transportation
5 shall promulgate rules for the issuance of special combination
6 vehicle permits and shall collect an annual fee of ~~Two Hundred Forty~~
7 ~~Dollars (\$240.00)~~ Three Hundred Forty Five Dollars (\$345.00) for
8 each such permit issued. Except as provided in Section 14-122 of
9 this title, fees collected pursuant to this section shall be
10 remitted to the State Treasurer to be credited to the General
11 Revenue Fund in the State Treasury.

12 C. For the purposes of this section, a special combination
13 vehicle shall consist of a truck-tractor semitrailer combination
14 towing two complete trailers or semitrailers. No semitrailer or
15 trailer used in such a combination shall have a length greater than
16 twenty-nine (29) feet nor shall a special combination vehicle exceed
17 the weight limitations imposed by Sections 14-109 and 14-116 of this
18 title.

19 SECTION 9. This act shall become effective November 1, 2026.
20

21 COMMITTEE REPORT BY: COMMITTEE ON COMMERCE AND ECONOMIC DEVELOPMENT
22 OVERSIGHT, dated 03/03/2026 - DO PASS, As Coauthored.
23
24